ORDINANCE 24-014Z

ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING THE EXISTING ZONING ORDINANCE AND ZONING MAP

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Zoning Ordinance and Zoning Map with regards to the Zoning of Tax Assessor's Lots 366, 367 and 434 on Assessor's Plat 6, with said properly commonly referred to as 15 Smithfield Road; and

WHEREAS, an application has been filed by SO NORTH PROVIDENCE JV, LLC, requesting the amendment the North Providence Zoning Ordinance and Zoning Map.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lots 366. 367 and 434 on Assessor's Plat 6, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from its current designated classification of Commercial Village ("CV") to Commercial General ("CG") with special limitations, to reflect the existing and historic use and character of the property.

SECTION TWO: That the Amendment set forth in Section One herein shall be subject to the following restrictions:

1. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

2. That in the event property owner, or its successor in interest, intends to change the character of the structures located on the property to attract or lease the property to big-box retail tenants, said property owner or successor must first obtain the approval of the Town Council by the passage of an ordinance authorizing said use;

3. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

SECTION THREE: That the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

SECTION FOUR: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION FIVE: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: November 6, 2024

COUNCIL PRESIDENT

APPROVED: November 7, 2024

MAYOR

TOWN CLERK

DECISION

TOWN OF NORTH PROVIDENCE TOWN COUNCIL

In Re: Application of SO NORTH PROVIDENCE JV, LLC,

DECISION

The above matter came before the North Providence Town Council, on September 3, 2024, with regard to an application filed by the above-referenced party to amend the existing North Providence Zoning Map and Zoning Ordinance. The representative of the applicants was present and was represented by legal counsel and after a public hearing before the North Providence Town Council, the Town Council, upon a roll call vote of six (6) ayes and zero nays, makes the following decision:

1. That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lots 366, 367, and 434 on Assessor's Plat 6 said premises commonly referred to as 15 Smithfield Road, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from be changed from Commercial Village ("CV") to Commercial General ("CG"), subject to the restrictions set forth in Section 2 herein.

2. That the amendment set forth in Section 1 herein shall be subject to the following restrictions:

A. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

B. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

C. That in the event property owner, or its successor in interest, intends to change the character of the structures located on the property to attract or lease the property to big-box retail tenants, said property owner or successor must

first obtain the approval of the Town Council by the passage of an ordinance authorizing said use;

3. That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

4. That any approval by the Town of North Providence Town Council is subject to the further approval by the State of Rhode Island, Statewide Planning Department.

Entered as a Decision of the North Providence Town Council, the local authority, on this 3rd day of September, 2024.

APPROVED AS TO FORM AND LEGALITY:

ADOPTED: November 6, 2024

Council President

APPROVED: November 7, 2024

Mayor

Town Clerk